

governed by the laws of the state of Missouri.” (Carney Decl., ¶ 3, Exh. A at p. 7, ¶ 41.)

When a case involves a mandatory forum selection clause, the traditional forum non convenien analysis does not apply. (See *Intershop Communications v. Superior Court* (2002) 104 Cal.App.4th 191, 198 [“[A] motion on traditional grounds of forum non conveniens is addressed to the discretion of the trial court to decline jurisdiction, and the trial court retains a ‘flexible power’ to consider and weigh all the factors.... In contrast, in cases with a contractual forum selection clause, the burden of proof is on the plaintiff, the party resisting the motion.”].) A mandatory forum selection clause is presumed valid and will be enforced unless enforcement of the clause would be unreasonable under the circumstances of the case. (See, e.g., *Smith, Valentino & Smith, Inc. v. Superior Court* (1976) 17 Cal.3d 491, 496; *Quanta Computer Inc. v. Japan Communications Inc.* (2018) 21 Cal.App.5th 438, 444; *Intershop*, 104 Cal.App.4th at 198.)

To the extent that Defendants are arguing that a mandatory forum selection clause mandates dismissal, Defendants have failed to offer admissible evidence of a contract between the parties containing a mandatory forum selection clause.

Plaintiff challenges Defendants’ failure to authenticate the lease agreement that is attached as Exhibit A of the Declaration of Terence Carney, defense counsel. Mr. Carney appears to lack the ability to authenticate the lease agreement. And Plaintiff filed a declaration stating, “I entered into no written agreement *with Red Tail*” and that “*Red Tail and I* have not agreed to any forum selection clause that requires this suit to be filed in St. Louis County, Missouri.” (Naren Chaganti Decl., ¶¶ 4-5, emphasis supplied). The second amended complaint references a written lease with Red Tail (SAC, ¶3) but does not attach the lease agreement. And Plaintiff now appears to believe that Red Tail is not the owner of the Missouri apartment complex. (Chaganti Decl., ¶¶ 2-3.)

As such, it is unclear if the lease agreement attached as Exhibit A (which is purportedly between an FLT HUNTERS